

Justification Review Document
FAR Part 12.102(b) Sole Source Justification and Approval

Program/Equipment: The Directorate of Public Works (DPW) at MICC-Fort Bliss, Texas has a requirement for Custodial Services to installation facilities in accordance with IMCOM Directorate – Readiness (ID-R) Common Levels of Support (CLS) 402.

Authority: 41 U.S.C. 1901 as implemented by FAR 12.102(b), Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements.

Amount: \$4,302,905.04.

Prepared by:

[REDACTED]

Contracting Officer:

[REDACTED]

Technical:

[REDACTED]

Requirements:

[REDACTED]

Reviews: I have reviewed this justification and find it adequate to support sole source.

[REDACTED]

[REDACTED]

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1. Requiring Activity: The Directorate of Public Works at Fort Bliss, Texas

2. Contracting Activity: U.S. Army Mission and Installation Contracting Command (MICC)-Fort Bliss, Bldg.111 Pershing Rd, Fort Bliss, Texas, 79916

3. Description of Action: Request approval to award a Firm-Fixed-Price (FFP) sole-source bridge contract to NuGate Group, LLC. The Government projects award for 23 April 2026 and fiscal year 2026 Operations and Maintenance funds will be used. The proposed bridge will consist of base year of four (4) month base period and four (4) one-month option periods.

4. Description of Supplies/Services: The Directorate of Public Works at Fort Bliss, Texas is required to provide Custodial Services for facilities located at Fort Bliss, Biggs Army Airfield (East Biggs), William Beaumont Army Medical Center (WBAMC), and the contiguous training ranges in El Paso, Texas and parts of Otero County, New Mexico. Custodial Services are performed under three levels of cleaning frequency to sustain a clean, healthy environment for occupants of approximately 400 buildings. The estimated value of this requirement is as follows:

Period	Period of Performance (POP)	Estimated Value
Base	23 APR 2026 - 22 AUG 2026	\$2,151,452.52
Option 1	23 AUG 2026 - 22 SEP 2026	\$537.863.13
Option 2	23 SEP 2026 - 22 OCT 2026	\$537.863.13
Option 3	23 OCT 2026 - 22 NOV 2026	\$537.863.13
Option 4	23 NOV 2026 - 22 DEC 2026	\$537.863.13

Total Value: \$4,302,905.04

5. Authority Cited: 41 U.S.C. 1901 as implemented by FAR 12.102(b), Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements.

6. Reason for Authority Cited: The sole-source award to the incumbent, NuGate Group LLC, is essential for the continuity of custodial services. The Government's acquisition strategy for a competitive follow-on contract was significantly delayed, first by an attempt to use an Inter-Governmental Service Agreement (IGSA) and subsequently by a GAO protest (B-423792). As a result of these delays, the proposals from the initial solicitation expired on 15 January 2026, forcing complete re-solicitation. An eight-month bridge contract is the minimum time required to issue a new solicitation, allow for proposal submission, conduct a source selection, and award the new competitive contract without a lapse in service.

NuGate Group LLC is the only responsible source capable of performing these services without an unacceptable delay. As the incumbent contractor, NuGate has the experienced and cleared workforce, equipment, and established management structure already in place at Fort Bliss. Awarding to any other source would require a significant start-up and transition period, which would inevitably result in a severe degradation or complete gap in custodial services across 400 facilities. Therefore, NuGate is the only source that can satisfy the Government's requirement for uninterrupted service during this interim period.

a. Background: The incumbent contractor, NuGate Group, LLC, is currently performing Custodial Services under contract W911S8-19-D-0005, which will fully expire on 22 April 2026. The path to securing a competitive follow-on has been significantly delayed by a series of unavoidable events. This bridge action is critical to ensure continuity of essential services during the interim period.

- 9 May 2025: A competitive solicitation for the follow-on requirement (W911SG-25-R-A004) was posted to SAM.gov.
- 8 July 2025: The Source Selection Evaluation Board (SSEB) was paused by Garrison leadership to explore an Intergovernmental Support Agreement (IGSA) as an alternative solution.
- 4 August 2025: An IGSA was executed with the City of Socorro, but this action was immediately protested at the GAO (Protest B-423792).
- 21 August 2025: Due to the protest and the resulting uncertainty, an urgent bridge contract was awarded to the incumbent to prevent a service gap. This bridge included a base period and four one-month options.
- 3 September 2025: The GAO dismissed the protest.
- December 2025 - March 2026: All four one-month options on the bridge contract were exercised consecutively.
- 6 April 2026 (Current Status): The final option period is set to expire on 22 April 2026. Due to the time consumed by the IGSA exploration and subsequent protest resolution, the competitive follow-on award has not been finalized, creating the present unusual and compelling urgency.

b. Alternatives

1) Suspension of services: Fort Bliss has approximately 400 buildings (3.6 million square feet) that require routine cleaning and custodial services to maintain sanitary levels of cleanliness. Contracted services ensure restrooms are clean, and

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stocked and ensures Soldiers, employees and visitors of Fort Bliss live and operate in a healthy environment. Temporarily suspending contracting services, an alternative that does not ensure sanitary and healthy living conditions, is not a viable alternative.

2) Award to a different contractor: Any other source would require a transition period for hiring, training, and mobilizing equipment. The time needed for this transition would exceed the time available before the current contract expires, resulting in a gap in service that is not acceptable to the Government. Therefore, no other source can meet the requirement to provide continuous, uninterrupted service

3) Full and Open Competition: Attempting to award a competitive requirement is not a viable alternative. Although there are other companies capable of performing the services, it would be neither cost effective nor realistic to expect another contractor to perform during the brief interim period. Start-up and mobilization/de-mobilization would be a considerable portion of the overall cost for a short duration contract and would not directly provide required services. The time required to conduct a full competition, even on an expedited basis, would create a gap in service.

c. Impact If justification is not approved: Custodial services at Fort Bliss will cease on 23 April 2026. This will result in immediate and unsanitary conditions across 400 facilities, creating a significant health and welfare risk for approximately 166,000 personnel. The serious injury to the Government would be a degradation of mission readiness and a direct threat to the health and safety of soldiers, civilians, and their families.

7. Efforts to Obtain Competition: In accordance with FAR 5.202(a)(4), a synopsis is not required for this action. The justification is approved, and it will be made publicly available on SAM.gov within 14 days of award. The Government is fully committed to competition for the long-term requirement. As evidence of this, a sources sought notice was posted to SAM.gov on 20 August 2024, which confirmed a competitive market exists for the follow-on acquisition. This sole-source justification is strictly limited to the short-term bridge contract necessary to allow that full and open competition to be properly completed without a break in service.

a. Effective competition. There is no other source that can successfully perform the required services in the timeframe required.

b. Subcontracting competition. The incumbent contractor, NuGate Group LLC is no longer considered a small business under NAICS code 561720. IAW FAR clause 52.219-28, Post award Small Business Representation, the contractor has represented that it is an other than small business. IAW FAR 19.301-2(e) the Contracting Officer may require a subcontracting plan as a result of the size representation. If the contractor subcontracts any part of this requirement, maximum opportunity shall be given to small businesses.

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8. Actions to Increase Competition: The barrier to competition is the lack of time to restart and complete the competitive source selection process for the follow-on contract before the current contract expires. A new solicitation must be issued to obtain current pricing. The period of performance for this bridge will be the minimum necessary to complete the competitive action.

9. Market Research: No new market research was conducted for this short-term bridge contract. However, extensive market research was recently conducted for the competitive follow-on requirement, W911SG-25-R-A004. That research confirmed a competitive market for custodial services exists, which was validated by the receipt of multiple proposals. This justification relies on that recent, robust market assessment.

10. Interested Sources: The competitive follow-on solicitation, W911SG-25-R-A004, received written proposals from multiple sources, demonstrating significant market interest in the underlying requirement. Due to the only one source available justifying this bridge action, no other sources were solicited for this temporary extension as there is insufficient time for a transition.

11. Other Facts:

a. Procurement History: Since 2003, the Custodial Services requirement has been primarily managed under the SBA 8(a) program. The following table provides a comprehensive history of known contracts for this requirement. There are no unusual patterns revealed by the procurement history.

Contract Number	Contractor	Set-aside	Contract Type	Contract Award Amount	Period of Performance	Business Size
W911S8-19-D-0005	Nugate Group LLC	8(a) Direct Award	FFP IDIQ	\$17,727,108.50	08APR2019 - Present	SB/8(a)
W911S8-19-C-0005*	Charitar Realty	8(a) Direct Award	FFP IDIQ	\$3,179,618.53	23JAN2019 - 23FEB2019	SB/8(a)
W911SG-17- P-0031	K-Clean Sweep Rite	8(a) Direct Award	FFP IDIQ	\$7,122,296.00	23APR2017 - 22JAN2019	SB/8(a)
W911SG-16-P-0106	K-Clean Sweep Rite	8(a) Direct Award	FFP IDIQ	\$3,561,148.00	23JUN2016 - 22APR2017	SB/8(a)
W911SG-15-C-0014	K-Clean Sweep Rite	8(a) Direct Award	FFP IDIQ	\$5,784,859.7 1	23MAR2015 - 22DEC2015	SB/8(a)
W911SG-15-C-0003	Eclipse Business	8(a) Direct Award	FFP IDIQ	\$1,170,922.12	10DEC2014 - 09MAR2015	SB/8(a)
W911SG-14-C-0005	Eclipse Business	8(a) Direct Award	FFP IDIQ	\$4,097,487.84	04FEB2014 - 03DEC2014	SB/8(a)
W911SG-14-P-0052	Eclipse	8(a) Direct	FFP IDIQ	\$707,151.20	4DEC2013 - 3FEB2014	SB/8(a)
DABK05-03- D-0007	Ace Janitorial	8(a)	FFP IDIQ	\$27,083,649.03	13JUN2003 - 31JUL2013	SB/8(a)

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12. Technical Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

[REDACTED]

13. Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

[REDACTED]

14. Fair and Reasonable Cost Determination: I hereby determine that the anticipated price/cost to the Government for this contract action will be fair and reasonable. This determination will be made using price analysis by comparing proposed prices to historical prices paid by the Government for the same or similar items under the current IDIQ contract, in accordance with FAR 15.404-1(b)(2)(ii). As part of the basis, certified cost or pricing data is not required per FAR 15.403-1(b)(3) as the item and/or services being acquired are considered commercial

[REDACTED]

15. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

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Approval

Based on the foregoing justification, I hereby approve the procurement of Custodial Services for Fort Bliss, Texas on an other than full and open competition basis pursuant to the authority of Title 10 41 U.S.C. 1901 as implemented by FAR 12.102(b), Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements. The estimated value of this bridge contract is \$4,302,905.04 for a total potential period of performance of eight months. The approval is subject to the availability of funds, and provided that the services or supplies herein described have otherwise been authorized for acquisition

